

22SMCV00160 22SMCV00160

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-09-03

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C09%2F03%2F2026

Source SHA-256: 3272d9041ef47495e8c3307ec0eb7f4e68cccb693fe92e3dd1ceed1cec8b1b5f

Case Number: 22SMCV00160 Hearing Date: September 3, 2026 Dept: N

TENTATIVE RULING

Plaintiff Jackson's motion to instruct the referee is DENIED without prejudice.

Plaintiff Jackson to give notice.

REASONING

Plaintiff moves for leave to instruct the referee regarding the verification of rent paying tenants, and removal of any non-rent paying tenants. Plaintiff represents the necessity of the motion in to order accurately determine the property valuation.

Legal Standard

"(a) The court shall appoint a referee to divide or sell the property as ordered by the court. [¶] (b) The court may: ... (2) Instruct the referee." (Code Civ. Proc., § 873.010.)

Appraisal and Accounting

Plaintiff alleges the rent payment information and eviction of non-paying occupants will render the required accounting in every partition more accurate. Valuation is at least in part a function of income for the subject four-unit complex, and Plaintiff demands all tenants pay rent controlled market rent. Plaintiff therefore seeks the eviction of Defendant as a non-paying tenant, and either an increase of rent to market rate or eviction for Defendant's son, Brian, who is also occupying one of the other three units. Defendant in opposition represents the motion is now moot given all residents are now paying rent and a property management firm in fact collects all rents. No reply appears on file.

The opposition represents payment of rent by Defendant and Brian, but the opposition lacks actual proof of any payment of rent by Defendant. According to Plaintiff, the rent paid by the son is also well below the rent controlled maximum, which appears undisputed by Defendant. [Declaration of Keith Landrum.]

The position of Defendant appears marginally supported at best. Regardless, the payment of full rents in no way appears to prevent the appraiser from ostensibly determining the property valuation. Plaintiff establishes a base market rate for Brian's unit, and can presumably also determine the value of Defendant's occupied unit, if a differing rate applies. Whether or not

Defendant pays rent or sufficient rent in no way appears to reflect on the ability or inability to determine the property valuation. The property is already receiving low ball offers, which were rejected. The parties and the referee apparently understand at least a certain minimum level of valuation given the rejection of the initial offers.

Further, Plaintiff also appears to seek a summary eviction of Defendant and Brian. The motion lacks any basis of authority for this position. The interlocutory judgment in no way provides the referee with a grant of authority providing to evict non-paying tenants. Given the property is not partitioned and both parties are co-owners, the authority to evict Defendant and Brian remains insufficiently addressed. (*Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [“When [a party] fails to raise a point or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”].)

The sole purpose of the referee is to establish valuation and determine potential equitable adjustments upon sale. The motion lacks a sufficiently supported position establishing the necessity of further instruction for determining valuation, or a basis for eviction.

The motion is therefore denied without prejudice.